

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 6

Honorable Rafael Sivilla-Jones, Presiding

191 North First Street, San Jose, CA 95113

Telephone: (408) 882-2160

June 30, 2026

9:00 and 9:01 A.M.

RECORDING COURT PROCEEDINGS IS PROHIBITED

ORAL ARGUMENT

Before 4:00 PM today you must notify the:

- (1) Court by calling (408) 808-6856 and
- (2) Other side by phone or email that you will appear at the hearing to contest the tentative

If you fail to so notify the court or opposing side, the Court will not hear argument, and the tentative ruling will be adopted. (California Rule of Court 3.1308(a)(1) and Local Rule 8.E.)

REMOTE APPEARANCES

Phone only appearances are PROHIBITED. In-person appearances are preferred.

For necessary virtual appearances, you **must use video** and follow **Civil Local Rule 5.**

To access the courtroom, click or copy and paste this link into your internet browser and scroll to

Department 6: <https://santaclara.courts.ca.gov/online-services/remote-hearings>

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:00 1	20CV361306	Edge Law Group vs. Bomi Joseph	Defendant moves this court to dismiss this case for Plaintiff's failure to bring this case to trial within five year period. Plaintiff and Defendant both stipulated to continuances beyond the five year period. The Court also imposed dates beyond the 5 year period. Defendant's motion is DENIED.
9:00 2-3	20CV366946	Rajesh Raghani vs. Samir Maharjan, et. al.	See below.
9:00 4	21CV390666	Eric Hartman et.al. vs Koshy P. George	Defendant moves this court to award attorney fees and costs. Defendant was the prevailing party. Defendant's motion is GRANTED. Court seeks oral argument regarding amount of sanctions.
9:00 5	22CV409006	Ray Chen vs. Bing Lu, et. al.	Receiver moves this court to approve the business sale of business known as Bing's Dumplings; approve business management agreement; and approve lease agreement for business premises. The court finds that it has jurisdiction over Bing's Dumplings as it is a business owned and operated by defendants. Receiver's motion is GRANTED.
9:00 6	923CV42234	Zenaida Seid v. Lucian Naum Zenaida Seid v. Lucian Naum	Defendant moves this court for continuance of all legal matters due to Defendant's medical condition. Defendant's motion is GRANTED. Court requests input from both parties as to further dates.
9:00 7	24CV432080	Serenity MSO, LLC et.al. vs Palo Alto Mind Body, et. al.	Defendant moves this court to disqualify attorneys representing plaintiff. Defendant and plaintiff worked together in growing a psychiatric practice. Documents were shared. Both parties appear to hold privilege of confidential information at the time because they were willingly sharing such information. Defendant's motion is DENIED.
9:00 8	24CV450596	Daniel Skelton et.al. vs FCA US, LLC	Plaintiff petitions this court to compel defendant to respond to a request for production of documents. Although late, it appears Defendant has complied with Plaintiff's request. Motion is DENIED.
9:00 9	25CV467677	Saneed Shaik vs. Satish Yezzu	Plaintiff moves this court to that Defendant be served summons and complaint through the Secretary of State's Office. Plaintiff has attempted to serve Defendant diligently. Defendant's motion is GRANTED.
9:00 10	25CV467677	Zou Hanshu v. Hao Chen, et.al.	Defendant moves this court to grant a demurrer as to Plaintiff's complaint. Plaintiff does not oppose the demurrer. Defendant's motion for demurrer is GRANTED.

Calendar Lines 2-3

Case Name: *Rajesh Raghani v. Classic Diamond & Jewelry, LLC et al.*

Case No.: 20CV366946

I. Defendants' JOP Motion

Defendants Samir Maharjan ("Maharjan") and Classic Diamond & Jewelry, LLC ("Classic Diamond") (together, "Defendants") have brought a motion for judgment on the pleadings ("JOP motion") as to the seventh and ninth causes of action alleged in the first amended complaint ("FAC") filed by Plaintiff Rajesh Raghani ("Raghani"). A defendant's JOP motion "is equivalent to a belated general demurrer." (*Sprague v. County of San Diego* (2003) 106 Cal.App.4th 119, 127 (*Sprague*)). It has the same function as a general demurrer, but it is made after the time for demurrer has expired.

The court GRANTS judicial notice of Exhibits 1, 2, and 3 to Defendants' request for judicial notice in support of their JOP motion. (Defendants' Request for Judicial Notice in Support of JOP Motion, Exs. 1-3.) The court may take judicial notice of records of any court of this state. (Evid. Code, § 452, subd. (d).) The court takes judicial notice of the existence of these exhibits but does not take notice of the truth of any disputed contents. (See *Oh v. Teachers Ins. & Annuity Assn. of America* (2020) 53 Cal.App.5th 71, 79-81 (*Oh*) [truth of contents of court records cannot be judicially noticed].)

The court GRANTS Defendants' JOP motion as to the FAC's seventh cause of action without leave to amend. The FAC's seventh cause of action alleges liability under Labor Code section 226.8. (FAC, ¶¶ 86-96.) Labor Code section 226.8 does not recognize a private right of action. (*Noe v. Superior Court* (2015) 237 Cal.App.4th 316, 341 ["Because section 226.8 does not provide a private right of action . . ."].) Furthermore, Raghani does not appear to oppose Defendants' JOP motion as to the seventh cause of action and on June 17, 2026 filed a request to dismiss the FAC's seventh cause of action in its entirety. (Opposition to JOP Motion ("JOP Opposition"), p. 6:2-6 ["Concurrently with this opposition, Plaintiff has dismissed the Seventh Cause of Action in its entirety . . ."]; Request for Dismissal, filed June 17, 2026.)

The court GRANTS Defendants' JOP motion as to the FAC's ninth cause of action as to Maharjan, without leave to amend. The FAC's ninth cause of action alleges wrongful termination in violation of public policy against both Classic Diamond and Maharjan. (FAC, ¶¶ 106-113.) The tort of wrongful termination in violation of public policy can only be brought against an employer. (*Miklosky v. Regents of University of California* (2008) 44 Cal.4th 876, 900 (*Miklosky*) ["Plaintiffs, however, overlook the fact that a *Tameny* action for wrongful discharge can only be asserted against *an employer*. An individual who is not an employer cannot commit the tort of wrongful discharge in violation of public policy; rather, he or she can only be the agent by which *an employer* commits that tort."], emphasis original.) Defendants argue that the FAC does not specifically allege that Maharjan was Raghani's employer for the purposes of the FAC's wrongful termination cause of action, and the court finds this argument persuasive given the Court of Appeal's holding in *Miklosky*. (Memorandum of Points and Authorities in Support of Defendants' JOP Motion ("JOP MPA"), p. 6:26-27.) Moreover, Raghani does not appear to oppose this argument and on June 17, 2026 filed a request to dismiss the FAC's ninth cause of action as to Maharjan only. (JOP Opposition, p. 6:2-6 ["Plaintiff has dismissed . . . the Ninth Cause of Action as to Defendant Samir Maharjan individually."]; Request for Dismissal, filed June 17, 2026.)

The court DENIES Defendants' JOP motion as to the FAC's ninth cause of action as to Classic Diamond. "In order to establish a constructive discharge, an employee must plead and prove . . . that the employer either intentionally created or knowingly permitted working conditions that were so intolerable or aggravated at the time of the employee's resignation that a reasonable employer would realize that a reasonable person in the employee's position would be compelled to resign." (*Turner v. Anheuser-Busch, Inc.* (1994) 7 Cal. 4th 1238, 1251 (*Turner*).) According to Defendants, the court "has already determined that, as he testified in his deposition, Mr. Raghani left his job with CDJ because of a personal disagreement with Mr. Maharjan about real estate Mr. Maharjan purchased in Missouri. This dispute had nothing at all to do with Mr. Raghani's working conditions at CDJ . . ." (JOP MPA, p. 6:8-11.) Defendants direct the court to a September 20, 2022 order issued by the court, wherein the court granted summary adjudication as to a cause of action alleged in the initial complaint filed by Raghani and noted that in "his own words, Plaintiff expressly discounts his own allegation that he was constructively terminated in retaliation for complaining about any purported labor violations. . . ." (Order re: Motion for Summary Adjudication, p. 15:15-23, filed September 21, 2022 (the "Prior Order").)

The court is persuaded by Raghani's argument in opposition. A JOP motion tests the sufficiency of the pleadings and accepts as true all properly pleaded factual allegations. (*Sprague, supra*, 106 Cal.App.4th at p. 127 ["On a plaintiff's appeal from a judgment on the pleadings . . . the appellate court thus accepts as true all properly pleaded factual allegations . . . [a] trial court's order granting a defendant's motion for judgment on the pleadings resolves a mixed question of law and fact that is predominantly one of law, viz., whether or not the factual allegations that the plaintiff makes are sufficient to constitute a cause of action."], internal citations and quotation marks omitted.) As Raghani notes, Defendants' argument regarding the Prior Order does not concern whether the FAC is insufficiently pled but rather whether the Prior Order forecloses the FAC's ninth cause of action. (JOP Opposition, p. 3:26 ["Tellingly, Defendants identify no pleading defect in those allegations."].) Moreover, the court's Prior Order concerned a motion for summary adjudication, where it considered evidence submitted by the parties, and Defendants do not provide the court with any authority permitting the court to grant Defendants' JOP motion on the basis of the Prior Order. The court declines, on a JOP motion, to find that this "dispute had nothing at all to do with Mr. Raghani's working conditions." (JOP MPA, p. 6:8-11.) The court turns to Defendants' motion for summary adjudication as to the ninth cause of action.

II. Defendants' Motion for Summary Adjudication

Defendants move for summary adjudication of the FAC's ninth cause of action for wrongful (constructive) termination. The court GRANTS judicial notice of exhibits 1, 2, and 4 in support of Defendants' motion for summary adjudication. The court may take judicial notice of records of any court of this state. (Evid. Code, § 452, subd. (d).) The court takes judicial notice of the existence of these exhibits but does not take notice of the truth of any disputed contents. (*Oh, supra*, 53 Cal.App.5th at pp. 79-81.)

The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850 (*Aguilar*).) "A defendant seeking summary judgment must show that at least

one element of the plaintiff's cause of action cannot be established, or that there is a complete defense to the cause of action. . . . The burden then shifts to the plaintiff to show there is a triable issue of material fact on that issue.” (*Alex R. Thomas & Co. v. Mutual Service Casualty Ins. Co.* (2002) 98 Cal.App.4th 66, 72 (*Alex R.*), internal citations omitted.) “There is a triable issue of material fact if, and only if, the evidence would allow a reasonable finder of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (*Aguilar, supra*, at p. 850.) A “party cannot avoid summary judgment by asserting facts based on mere speculation and conjecture, but instead must produce admissible evidence raising a triable issue of fact.” (*Christina C. v. County of Orange* (2013) 220 Cal.App.4th 1371, 1378, internal citations and quotation marks omitted.)

The court finds that Defendants have met their initial burden to establish that there is no triable issue of fact as to whether Raghani's termination “was substantially motivated by a violation of public policy.” (Memorandum of Points and Authorities in Support of Motion for Summary Adjudication (“MSA MPA”), 4:3-20.) “The elements of a claim for wrongful discharge in violation of public policy are (1) an employer-employee relationship, (2) the employer terminated the plaintiff's employment, (3) the termination was substantially motivated by a violation of public policy, and (4) the discharge caused the plaintiff harm.” (*Garcia-Brower v. Premier Automotive Imports of CA, LLC* (2020) 55 Cal.App.5th 961, 973 (*Garcia-Brower*), internal citation and quotation marks omitted.) “In order to establish a constructive discharge, an employee must plead and prove . . . that the employer either intentionally created or knowingly permitted working conditions that were so intolerable or aggravated at the time of the employee's resignation that a reasonable employer would realize that a reasonable person in the employee's position would be compelled to resign.” (*Turner, supra*, 7 Cal. 4th at p. 1251.) The FAC alleges that Raghani “resigned his employment because of the working conditions described” in the FAC. (FAC, ¶ 110.) Defendants submit evidence, however, indicating otherwise. During deposition, Raghani testified in response to the question “why did you quit” that it “was nothing job-related. It was something that I discovered which didn't make me happy, knowing that I had a relationship with him for so many years. And that kind of hurt me bad, and I just quit. . . . He had invested in a property in Missouri. And quite some years. But for him to keep it from me came as a jolt. I always thought we were in good terms, friends, well-wishers. And this was very shocking. That was just something I couldn't comprehend and understand why he would hide that.” (Defendants' Exhibit Index, Exhibit 3, pp. 5:18-6:7.) “A constructive discharge is the practical and legal equivalent of a dismissal—the employee's resignation must be *employer-coerced*, not caused by the voluntary action of the employee or by conditions or matters beyond the employer's reasonable control.” (*Turner, supra*, 7 Cal.4th at p. 1248, *emphasis original*.) The deposition testimony described above indicates that Raghani's “resignation” was not employer-coerced but rather was “caused by the voluntary action of the employee or by conditions or matters beyond the employer's reasonable control.” (*Ibid.*)

The court is not persuaded by several of Raghani's arguments in response to the evidence submitted by Defendants. First, Raghani argues that Defendants have not “negated the existence of intolerable working conditions.” (Opposition to Motion for Summary Adjudication (“MSA Opposition”), p. 9:10-22.) “A defendant seeking summary judgment must show that at least one element of the plaintiff's cause of action cannot be established, or that there is a complete defense to the cause of action. . . . The burden then shifts to the plaintiff to show there is a

triable issue of material fact on that issue.” (*Alex R.*, *supra*, 98 Cal.App.4th at p. 72, internal citations omitted.) The evidence submitted above, as discussed by the court, shows “that at least one element” of the FAC’s ninth cause of action “cannot be established.” (*Ibid.*) For similar reasons, the court is not persuaded by Raghani’s argument that constructive discharge “is governed by an objective standard.” (MSA Opposition, pp. 6:26-8:5.) Again, this argument does not actually address the evidence submitted by Defendants regarding whether Raghani’s resignation was “employer-coerced, [and] not caused by the voluntary action of the employee or by conditions or matters beyond the employer’s reasonable control.” (*Turner*, *supra*, 7 Cal.4th at p. 1248.)

Raghani also cites *Scalf v. D.B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510 (*Scalf*) to argue that a “moving party cannot obtain summary adjudication merely by isolating a single unfavorable deposition answer while disregarding other evidence that creates triable issues of material fact.” (MSA Opposition, pp. 1:24-27, 8:5-9:9.) In *Scalf*, the “trial court granted summary judgment based upon certain inculpatory statements by the moving party’s opponent in deposition, while refusing to consider other evidence disclosing triable issues of material fact.” (*Scalf*, *supra*, 128 Cal.App.4th at p. 1514.) The Court of Appeal held that summary judgment should not be granted on the basis of “tacit admissions or fragmentary and equivocal concessions.” (*Id.* at p. 1523, internal citations and quotation marks omitted.) These circumstances are not present here. The deposition testimony submitted by Defendants is not an “equivocal” or “tacit” concession—it is a statement from Raghani that his reasons for “quitting” were not “job-related.” (Defendants’ Exhibit Index, Exhibit 3, pp. 5:18-6:7.) The court is therefore not persuaded by Raghani’s reliance on *Scalf*.

The burden shifts to Raghani to demonstrate the existence of a triable issue of material fact. Raghani submits admissions deemed admitted by the court and deposition testimony from both Maharjan and Raghani indicating that, for example, Defendants violated various Labor Code sections by failing to pay Raghani overtime wages, failing to pay Raghani minimum wage, and failing to furnish compliant wage statements. (See MSA Opp, pp. 9:23-10:4; Raghani’s Response to Defendants’ Separate Statement, Additional Material Facts nos. 1-33; Compendium of Exhibits in Support of Raghani’s Opposition to Defendants’ Motion for Summary Adjudication, Exs. A-G.)

The court finds that this evidence does not address the evidence submitted by Defendants and show a triable issue of fact as to whether “the termination was substantially motivated by a violation of public policy.” (*Garcia-Brower*, *supra*, 55 Cal.App.5th at p. 973.) Rather, the evidence shows that Defendants violated various labor codes, as discussed. It does not address Raghani’s deposition testimony that his reasons for leaving Defendants’ employment involved “nothing job-related” and the Court of Appeal’s holding in *Turner* that a “constructive discharge is the practical and legal equivalent of a dismissal—the employee’s resignation must be employer-coerced, not caused by the voluntary action of the employee or by conditions or matters beyond the employer’s reasonable control.” (*Turner*, *supra*, 7 Cal.4th at p. 1248, emphasis original; Defendants’ Exhibit Index, Exhibit 3, pp. 5:18-6:7.) On a motion for summary judgment or adjudication, after the defendant submits evidence showing that at least one element of the plaintiff’s cause of action cannot be established, the burden shifts to the

plaintiff to show that there “is a triable issue of material fact on that issue.” (*Alex R., supra*, 98 Cal.App.4th at p. 72.)

Raghani also directs the court to the deemed admission that “Plaintiff’s employment with [Classic Diamond] resulted in constructive termination.” (Compendium of Exhibits in Support of Raghani’s Opposition to Defendants’ Motion for Summary Adjudication (“Raghani’s Evidence”), Exs. F, E at p. 5.)¹ The court acknowledges that Code of Civil Procedure section 2033.410 states that any “matter admitted in response to a request for admission is conclusively established against the party making the admission in the pending action, unless the court has permitted withdrawal or amendment of that admission under Section 2033.300.” (Code Civ. Proc., § 2033.410, subd. (a).) Moreover, the court notes that although “requests for admission are included in the Code of Civil Procedure among discovery procedures, they differ fundamentally from other forms of discovery. Rather than seeking to uncover information, they seek to eliminate the need for proof. As a general rule an admission is conclusive in the action as to the party making it. Absent leave of court to amend or withdraw the admission, no contradictory evidence may be introduced.” (*Murillo v. Superior Court* (2006) 143 Cal.App.4th 730, 735-736, internal citations and quotation marks omitted.)

Nevertheless, although “admissions are dispositive in most cases, a trial court retains discretion to determine their scope and effect. An admission of a fact may be misleading. In those cases in which the court determines that an admission may be susceptible of different meanings, the court must use its discretion to determine the scope and effect of the admission so that it accurately reflects what facts are admitted in the light of other evidence. . . . The more narrow the language in the request for an admission, the less opportunity the court has to determine its scope and effect.” (*Fredericks v. Kontos Indus.* (1987) 189 Cal.App.3d 272, 277 (*Fredericks*).) After “a matter is deemed admitted, the scope and effect of the admission must be determined by the trial court. The trial court has broad discretion in determining the admissibility and relevance of evidence.” (*Milton v. Montgomery Ward & Co., Inc.* (1973) 33 Cal.App.3d 133, 138, internal citations omitted; see also *Burch v. Gombos* (2000) 82 Cal.App.4th 352, 360 [“Here, although the RFA and admission were not ambiguous in precisely the same way as those in issue in *Fredericks*, the trial court was still faced with a situation where it needed to determine the ‘scope and effect’ of the admission. . . .”].)

Taking all of this into account, the court agrees with much of Defendants’ argument on reply regarding the deemed admission that “Plaintiff’s employment with [Classic Diamond] resulted in constructive termination.” (Reply in Support of Motion for Summary Adjudication, pp. 5:7-6:8.) The deemed admission, directed at Classic Diamond, requests that Classic

¹ By way of background, the court notes that on April 3, 2024, the court deemed certain requests for admission admitted, including the requests for admission discussed above. (Order Deeming Matters in Requests for Admission Admitted, filed Apr. 3, 2024.) On May 26, 2026, the court denied Defendants’ motion to grant relief from the court’s previous order deeming certain admissions as true.

Diamond “admit that PLAINTIFF’s employment with YOU resulted in constructive termination.” (Raghani’s Evidence, Ex. E at p. 5.) This request does not address the elements of a wrongful termination cause of action or constructive discharge discussed by the court above. (See *Turner, supra*, 7 Cal. 4th at pp. 1248, 1251; *Garcia-Brower, supra*, 55 Cal.App.5th at p. 973.) Nor does this deemed admission directly address the evidence submitted by Defendants. Furthermore, Raghani’s requests for admission do not define “constructive termination.” By way of contrast, the court notes that the other deemed admissions request that Classic Diamond admit, for example, that it failed to produce Raghani’s payroll records within 21 days of Raghani’s request in violation of Labor Code section 226, subdivision (b). (Raghani’s Evidence, Ex. E at pp. 2-5.) In other words, they name a statute and describe conduct that purportedly violated this statute. Ultimately, the court finds that Raghani has not met his burden to demonstrate that a triable issue of material fact exists.

The court GRANTS Defendants’ motion for summary adjudication as to the FAC’s ninth cause of action.